

PART G: SITE SPECIFIC CONTROLS

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SECTION 1 – SITE SPECIFIC CONTROLS OVERVIEW

Background

This element outlines provisions relating to sites with a pre-existing Development Control Plan, Masterplan (deemed Development Control Plan's) or Masterplan Development Consent. All development in the area to which the *Leichhardt Development Control Plan 2013* applies.

Introduction

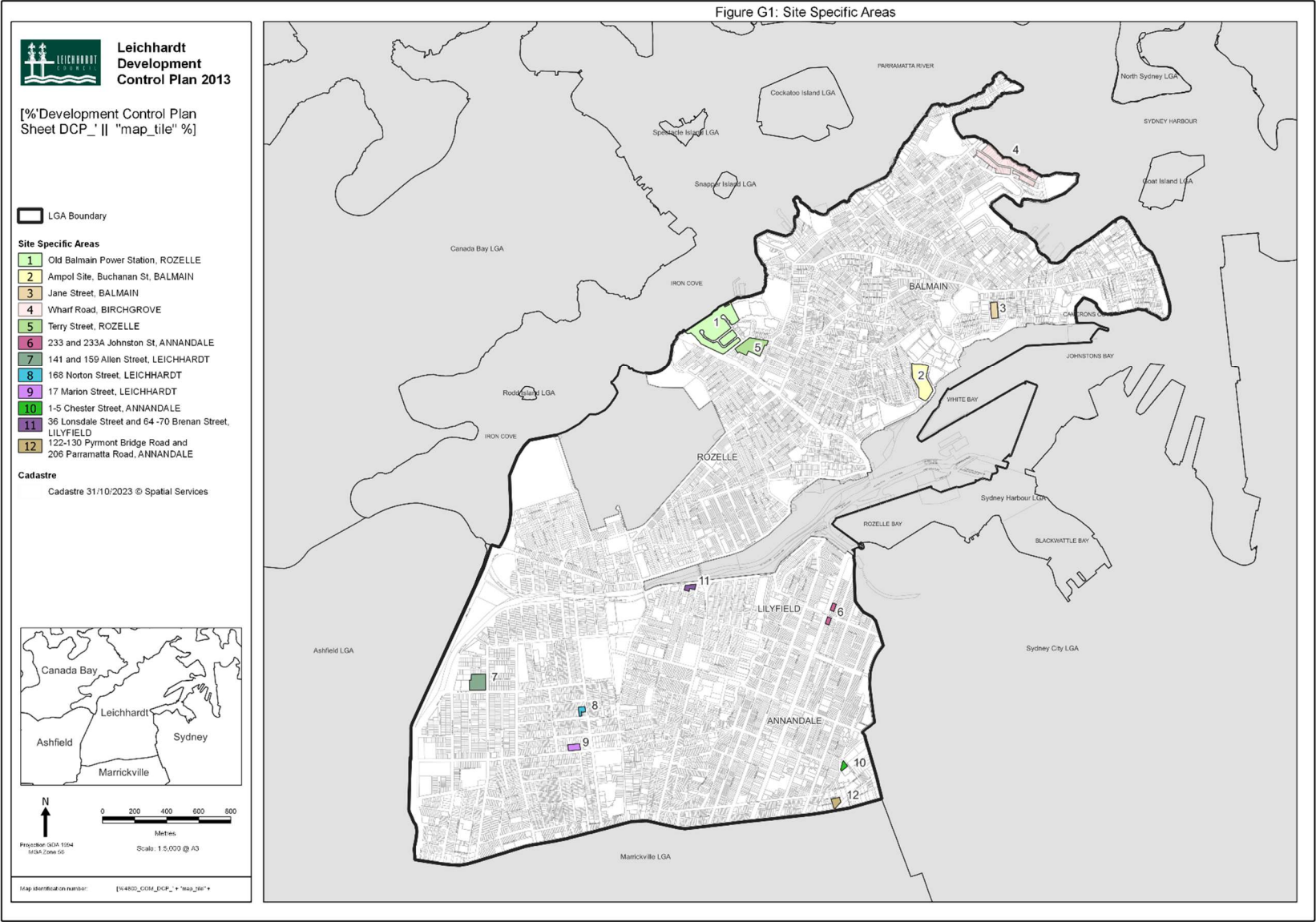
This section contains provisions for each of the sites identified in the map at Figure G1 - Site Specific Areas. Provisions are included for sites with a pre-existing Development Control Plan, Masterplan (deemed Development Control Plan) or pre-existing masterplan Development Consent. Where there is an inconsistency between this and any other section of this Development Control Plan, this section applies to the extent of the inconsistency.

Sites Identified in Previous Development Control Plans, Masterplans or Development Consents

This Development Control Plan repeals the Development Control Plans listed in Part A of this Plan as well as all deemed Development Control Plans (Masterplans) that have previously applied within the Leichhardt Local Government Area.

The objectives and provisions of the following sites are a translation of the controls of repealed Development Control Plan's (including Masterplans) and relevant development consents.

Figure G1: Site Specific Areas



SECTION 2 – OLD AMPOL LAND, ROBERT STREET, BALMAIN

Map Reference

Refer to Area 2 on the map in Figure G1 – Site Specific Areas.

Background

Recent development of this site incorporated employment uses, such as retail and commercial with residential development. The residential development benefits from the provision of services and facilities on the Balmain peninsula, such as public transport, shopping centres and schools. This site takes advantage of views across White Bay to the City skyline.

Future development of this land will need to complement the established character of Balmain; to be an interesting place for people to live, work and visit; and to maintain or enhance the local environmental amenity for existing residents in the area.

G2.1 PLANNING AND URBAN DESIGN

Objectives

- O1 To ensure that buildings complement the established character of the locality.
- O2 To provide a development that incorporates view-sharing principles.
- O3 To promote employment generating uses on the site.
- O4 To provide an active and stimulating streetscape.

Controls

- C1 Building shall front and closely align with the street and open space systems. Buildings shall complement the context, and reflect the variety and complexity of the area in terms of building and roof form (including height), materials and architectural detail.
- C2 The ground floor should provide for active uses that service the needs of local residents, can be incorporated into the street frontage and add excitement to urban living, or may simply provide a place of employment (e.g. small offices and workshops for local residents).
- C3 Along the cliff top area, a separation distance of 8m shall be provided between buildings, in order to provide view corridors. This separation distance may incorporate a single storey structure of up to 3m in width such as a garage or carport with the remainder of the land being landscaped.
- C4 All garage openings visible from the street frontage shall have a width no wider than 3m.

G2.2 PUBLIC DOMAIN

Objectives

- O1 To integrate public open space areas into the existing and future foreshore open space systems.
- O2 To provide and maintain open space that takes advantage of the views from the site to the City skyline and other parks on headlands.

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- O3 To maintain pedestrian links throughout the site.
- O4 To maintain existing and create new landscape opportunities on and around the site.

Controls

- C1 The interface edge between public open space and private open space is to be delineated by walls or fences, changes in levels, plantings or pathways.
- C2 Public spaces are to have good sight lines, be overlooked and well lit at night.
- C3 Tree planting along the surrounding streets is to be provided in accordance with Council's requirements.
- C4 Species used in the landscaping are to be indigenous to the area where they are suitable for the purpose and site conditions.
- C5 Any new plantings shall minimise view loss from existing buildings within and adjacent to the site.

G2.3 ACCESS, TRAFFIC MANAGEMENT AND PARKING

Objectives

- O1 To provide for the safe movement of vehicles on and around the site.
- O2 To maintain footpaths with adequate pedestrian amenity within and around the site.

Controls

- C1 Provide secure cycle parking to serve the needs of residents, visitors and users of the commercial centres and open space.
- C2 Provide safe access for pedestrians to and from the site.

SECTION 3 – JANE STREET BALMAIN

Map Reference

Refer to Area 3 on the map in Figure G1 – Site Specific Areas.

Background

This element outlines objectives and controls for the development of the site known as 14-18 Jane Street, Balmain.

The Catholic Church group started with the small stone church at 3 Jane Street and the Convent opposite from about 1850, and was dramatised particularly by the construction of St Augustine's in Federation Gothic style, commenced in 1906. The last building in this group was The Presbytery, built in 1922. This group marks the hilltop and is the major landmark for Balmain in views from the City approaches from the south and east. The hill town character is probably the major attribute forming the identity of the suburb.

The only significant development sites in the precinct are the two parcels known as 16 and 18 Jane Street comprising the former School grounds bounded by Jane, Vincent, and Fawcett Street and the former Convent at 14 Jane Street. There is a steep cross fall from the north west to the south east on these sites. These sites are terraced with stone retaining walls to provide flat areas for playgrounds and courts. The sites are generally cut below the level of Jane St, and raised slightly above Vincent and Fawcett Street but the land rises well above Fawcett Street to the north end behind the Convent.

The former Convent School site is defined by neutral edges of low stone and brick walls, wire fencing, and dramatic tree planting.

There is a cluster of conifers to Jane Street, mostly recent Eucalypts to Vincent Street, and a regular line of Brush Box along Fawcett Street. There is also an established *Magnolia grandiflora* behind the Convent.

Objectives

- O1 To protect and enhance the historic townscape of this precinct particularly with respect to the views from the east and south, to the focal point of St Augustines.
- O2 Conversely protect and enhance the public and private views to the south down Jane Street and east across the development sites to the City skyline.
- O3 To ensure development respects the historic patterns in terms of topography, scale, character, siting, materials, and the landscape of the precinct.
- O4 To encourage restoration and conservation of the historic fabric of the former Convent, with any new development being complementary and largely seamless change.
- O5 To conserve the shared landscape of mature trees.

Controls

- C1 Jane Street – A 3.6m wall height and envelope measured above the alignment along Jane Street is appropriate. Development should step finely with slope, with detached or semi-detached forms and rhythms of roofs, hips or frontal gables, one storey above Jane Street only, at any point. Buildings should be closely aligned to the frontage, stepping back only where a curtilage for trees is required.

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- C2 Vincent Street - A 6m wall height is appropriate, subject to solar access being sustained to the properties on the south side of the street. A two-storied terrace form, closely aligned except to avoid substantial trees is appropriate.
- C3 Fawcett Street - The neutrality of this street/lane as a one sided street with a walled and treed edge opposite must be retained. The wall should be reinforced by continuation of a higher wall to Vincent Street in matching common brick. To maintain a low scale terracing with slope, requires a stepped form with a two storey maximum, with the upper floors stepped back, and flat or low roof lines.
- C4 Parking to the corner site is best located with access at the lowest point possible off Vincent Street in a tight footprint substantially below the building footprint and below grade and clear of the drip line of the major trees.
- C5 Any garage entry from Fawcett Street shall be a single entry door, flush with the wall, and recessive in treatment.
- C6 The easterly view to the City skyline should be maintained above the principal line of Brush Box (not the higher canopy trees).
- C7 The view of the Balmain townscape focussed on St Augustine's tower, from the City, the waterways and the bridge approaches from the east and south should be maintained.
- C8 Modern buildings are appropriate, in recessive tones and colours.
- C9 Retention of a stepped stone wall to the street frontage is desirable. Parts shall be at sitting height, to provide seating opportunities for passers-by.
- C10 It is not appropriate to use stone for the main wall claddings of any new buildings. Coloured, rendered, or bagged masonry or painted timber are appropriate wall materials.
- C11 An Interpretation Plan for conveying the history of the site by means such as signage or artworks in the pavements is to be incorporated in the development.
- C12 The history and heritage of the site shall be interpreted to the Jane Street frontage by a plaque or work either wall mounted or inset into the pavement to explain the values of the context of the Church buildings.
- C13 The exterior form as seen from the surrounding streets and the longer views from the Harbour are to be conserved and/or restored.
- C14 There may be scope (subject to the density limits) for either a low scaled preferably detached pavilion style building to the south eastern corner, and/or for extending the northern wing to the east.
- C15 The exterior fenestration pattern, joinery and details shall be conserved / restored as far as possible. However recessed balconies may be accepted to the southern and/or eastern faces behind existing openings.
- C16 If outdoor space is required in association with residential use, any new balconies to the eastern face may be external to the existing building and shall be light weight and transparent elements which must not obscure the existing building form as seen in the long views.
- C17 The principal internal spaces shall be conserved and any partitioning or mezzanine floors added in light weight and reversible materials and methods of construction.

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- C18 Off street parking should be minimised in order to minimise the impacts of excavation and access requirements on the curtilage of the Convent and the amenity of the area.
- C19 The existing hardstand parking off Jane Street shall be replaced with landscaping.
- C20 Car entries should be single width, and hard paving should be replaced with landscaping wherever possible.

SECTION 4 – OLD BALMAIN POWER STATION

Map Reference

Refer to Area 1 on the map in Figure G1 – Site Specific Areas.

Background

This element provides guidance and controls for housing and commercial development and principles for the development of open space on the Old Balmain Power Station site. This element establishes the detailed site planning and design, open space and traffic/parking provisions. Part G4.1 applies to all development on the land bound by Victoria Road, Terry Street, Margaret Street, Elliott's Cove Site and Iron Cove.

A major foreshore park and the foreshore promenade are the key open space features on the site. The open space includes the rock features of the cliff around the site of the old power station and the fig tree at the top of the south-east corner of the cliff. The open space network is linked to the Elliott's Cove (35 Terry Street) site at the foreshore and the mid-site levels, with connections to Victoria Road at the intersection with Terry Street and at Iron Cove Bridge.

The cycle and pedestrian network utilises the open space links on the site to connect through the Elliott's Cove site to Terry Street (at the High School boundary) and also along the foreshore. Pedestrian access to the foreshore is provided directly on the site as well as from below the Iron Cove Bridge and from Victoria Road.

The housing, mostly in the form of residential flat buildings and townhouse development, encloses three sides of the open space, and from there it steps up the hill to Terry Street.

The site is also home to a number of common Bent-Wing Bats and any impact on this threatened species will need to be assessed.

G4.1 PLANNING AND URBAN DESIGN

Objectives

- O1 To utilise the topography to ensure that buildings maximise the northerly aspect and facilitate views from the site.
- O2 To provide a variety of housing types and sizes on the site, including affordable housing.
- O3 To develop an enclosing built edge to the open space that provides a sense of public space.

Controls

- C1 Building shall front and closely align with the street and open space systems. Buildings shall complement the context, and reflect the variety and complexity of the area in terms of building and roof form, materials and architectural detail.
- C2 Buildings to be setback a minimum of 4m from open space (except for 3m to side boundaries) excluding balconies, which shall be setback a minimum of 2.5m (excluding corners).
- C3 Commercial and community activities to serve the development and locality are appropriately located along Terry Street, in the heritage buildings and near the waterfront and accessible from Margaret Street.

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- C4 Commercial uses ancillary to open space and the Harbour as well as recreation services are also encouraged.
- C5 An acoustic report is to accompany any development application for development of the section of the site fronting Victoria Road.
- C6 Structures fronting Victoria Road should not be higher than four (4) storeys above the road centre line at any adjacent point and should be designed in a manner, which will enhance the streetscape appearance of the development.
- C7 Buildings located on the point shall not have a height in excess of four (4) storeys above existing levels at any point.

G4.2 OPEN SPACE

Objectives

- O1 To provide for a variety of spaces on the site catering for a mix of recreation activities, including children's play, informal games and sitting areas related to views.
- O2 To provide a pedestrian access system through the site to facilitate access to the waterfront.
- O3 To facilitate pedestrian and cyclist links through the site and along the foreshore.

Controls

- C1 Maintain pedestrian access, bicycle access and landscape corridors that are provided adjacent to the foreshore, below the Iron Cove Bridge rising through the middle level of the site to the end of Margaret Street, joining the mid site corridor through to Terry Street at the Balmain High School boundary and down the centre of the site from Terry Street to the foreshore.
- C2 Maintain a large multi-purpose open space on the former Powerhouse building platform as a focal point, with easy access from Margaret Street and Victoria Road and broad views out.

G4.3 COMMUNITY SERVICES

Objectives

- O1 Explain on site, the history of the site.
- O2 Ensure that the development of buildings, public facilities and open space provides equitable access.

Controls

- C1 Maintain a centrally located interpretation facility, preferably over-viewing the site, explaining the history of the site.
- C2 Ensure that any development complies with the relevant requirements for Disabled Access.

G4.4 TRANSPORT, TRAFFIC AND PARKING

Objectives

- O1 Provide adequate access and parking on and off Victoria Road and through a public street system on this site to service all needs, including open space.
- O2 Provide for future servicing of the site by public transport including bus and ferry.

Controls

- C1 Maintain street access via Margaret Street to Terry Street.
- C2 Maintain visitor parking as easily accessed kerbside parking.
- C3 Provide secure cycle parking to serve the needs of residents, visitors and users of the commercial centres, open space and public wharf.
- C4 Provide safe access for pedestrians to and from the site.

G4.5 LANDSCAPING

Objectives

- O1 To encourage landscaping on the site representative of the species indigenous to the area, with more formal plantings to the foreshore promenade and street system.
- O2 To maintain a feature of the rock cliff exposed by removal of the power station.
- O3 To utilise the foreshore open space as a multi-purpose park.

Controls

- C1 Plantings to provide screening between buildings/dwellings and between buildings / dwellings and open space.
- C2 Plantings to provide a carefully designed layout of faster and slower growing species to provide and then maintain optimum effect.
- C3 Landscaping shall be a mix of formal plantings to the foreshore promenade and street system, with contrasting informal plantings of native species, and permaculture gardens in the open space corridor.
- C4 Surface rock and rock cuttings are to remain exposed wherever possible.
- C5 Retain and re-establish the habitat and flora of the site as appropriate.
- C6 Retain the fig trees as a feature above the cliff and on the boundaries.

SECTION 5 – WHARF ROAD, BIRCHGROVE

Map Reference

Refer to Area 4 on the map in Figure G1 – Site Specific Areas.

Background

Wharf Road is located within the Balmain Heritage Conservation Area under *Inner West LEP 2022* and is of high value as one of the few surviving, mostly intact Victorian and Federation period waterfront streets in Sydney. Many of the older houses were constructed to address the water with little or no attempt to address the street frontage. This has led to many of the significant characteristics of the area being viewed primarily from the water, such as the sandstone seawall, various docks, slips and steps to the water's edge.

The character of the street has been dictated largely by the topography, with rock face on the southern side and two/three storey houses above. On the northern side, the houses present as single or double storey with multiple storeys stepping down toward the water. In many places the only available views are between or over houses fronting the water. The built form of this street is enhanced by many established gardens and landscaping.

The objectives and controls aim to conserve the established character of the street and to allow development to take place that is compatible with existing structures and established landscaping and natural topography.

Historical context

The Site Context Plan

Wharf Road developed incrementally from the mid-19th century into the early 20th century as a highly desirable street of mostly detached individual houses. The primary aspect of the houses is to the water. The houses were well setback from the water with terraced gardens taking advantage of the north aspect, views, and water access. Waterfront industry arrived in the 20th century. The remaining facilities contribute to its flavour.

The area developed from the mid-19th century, with stone and timber houses constructed with their orientation to the water, the street being subservient for primarily service access. The houses were well built and detailed, but relatively modest by later standards. These structures now have a significant and important place, particularly on the water frontage. Many of the structures remain significant and contributory even when incorporated within later structures.

Development from the late-19th century saw some of the early houses incorporated into larger structures and a series of new villas of various styles being constructed. They were generally built further up the site, of two or three storeys and had a street frontage and a water frontage. They were situated on larger lots, most of which have been subdivided for additional residential dwellings. A range of other houses were built of various styles including the Victorian terrace at No 3, the eclectic Maybanke and Normanton, the Italianate mansion at No 39, the arts and crafts style of No 43 and the Californian bungalow at No 31.

The first part of this century saw a number of developments, changes and additions to the street, including the activities of the Stannards site on Wharf Road, the additions of many boatsheds, most since removed and the addition of several major houses including No 31. Not much new development took place between the 1920s, when a number of properties were substantially upgraded, and the

1970s, when the area again became a desirable address and the pressure for development, in particular subdivision, intensified.

From this time a number of properties have been subdivided, including Nos. 7, 9, 13, 15 and 29. This allowed a range of buildings to be added to the street which have fragmented the pattern of development. It is largely these new buildings and structures that have affected the consistency of building setbacks and reduced them, covering larger parts of sites. The sense of a building sitting in the surrounding landscape has consequently been eroded for some of the sites. Some of the newer buildings are mostly neutral or benign in form and not sympathetic to earlier architectural design.

Existing Character Statement

Attributes of streetscape

The streetscape of Wharf Road is of high heritage value. The scale and pattern of development enhances the heritage and streetscape value of the individual properties.

Topography

The topography of the waterfront changes from east to west in a significant way. The eastern end of the street has a large rock escarpment that once formed the natural harbour edge. It divides the built-up areas of the site from the waterfront and has meant that all of the houses are set back from the water with garden areas extending to the rock face and stairs leading to the reclaimed waterfront areas which are flat, close to water level, and contain pools and waterside structures such as boatsheds. This has the effect of the houses being seen well back from the water, generally two or more storeys and when viewed from the water largely obscuring houses in the street behind.

While still evident at the western end of the street, the rock face has reduced substantially in height and has been incorporated as a number of smaller steps in garden areas. This has meant that the earlier houses such as Nos. 33, 35 and 37, as well as the later No. 31, are set down closer to the water with a much closer relationship of house to water's edge. The overall effect of this change in topography is a 'softer' and more integrated relationship between houses and water.

Streetscape features result in a range of car parking issues. The increasing number of garages reduces available street parking and this limited availability and the narrowness of the street restricts footpath use. Both issues will result in adverse visual and view impacts. These impacts incrementally increase with additional development on the street.

Waterfront edge and structures

A key component of the waterfront is the water's edge which is a defining element of the area when viewed from the water and provides a high level of consistency and continuity.

The predominant form is a stone sea wall with various indents and projections to suit former and present boatsheds and water activities. These include slipways, small harbours, steps or combinations of them. They are of high significance, particularly structures from early development periods and definitive character of the waterfront.

The waterside structures are another defining element with early photographs indicating that the waterfront was predominantly boatsheds and jetties.

The character of the waterside of a number of properties has been enhanced by garden structures such as conservatories, gazebos, ornaments and fountains.

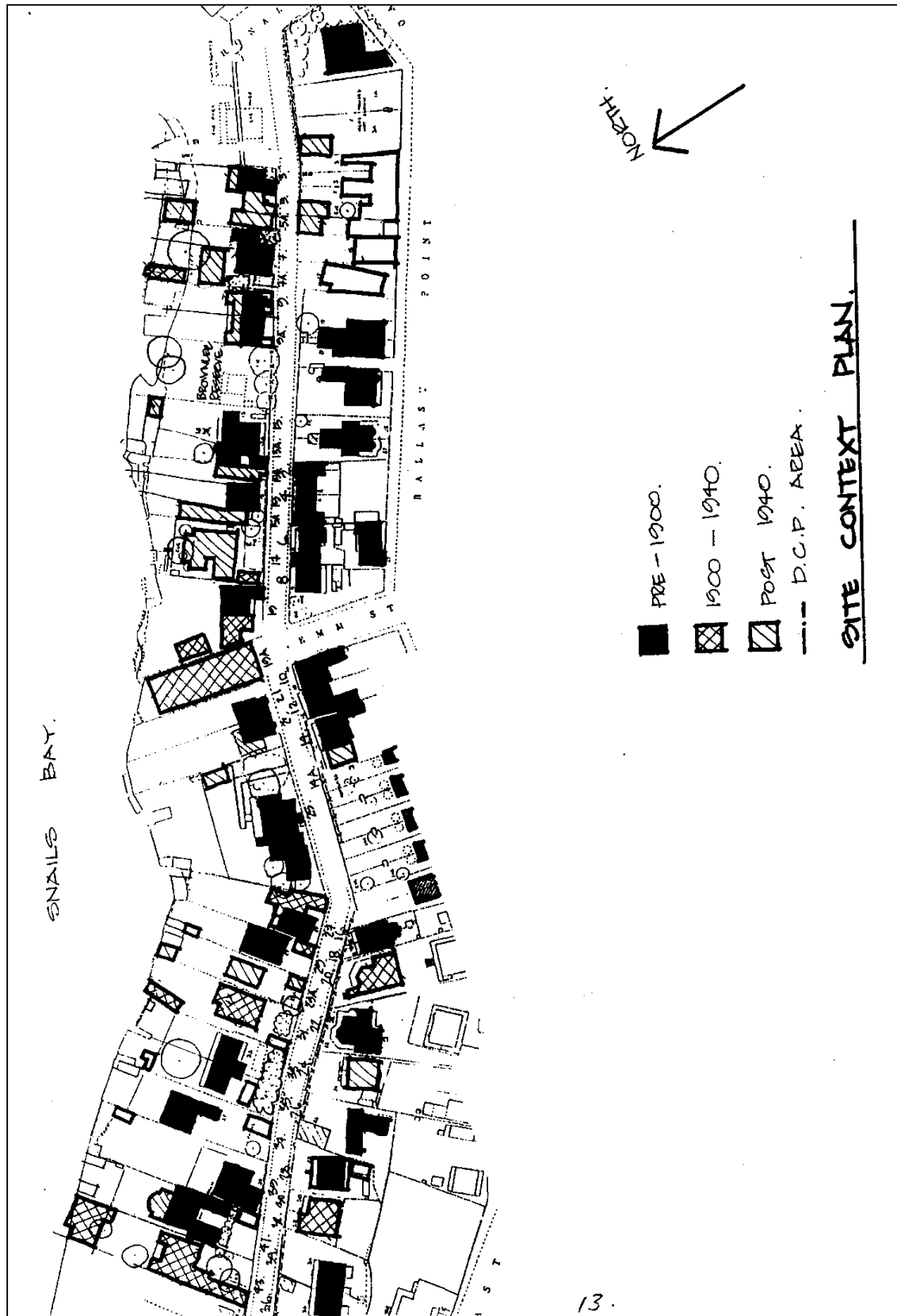


Figure G2: Site Context Plan

G5.1 HERITAGE

Objective

- O1 The buildings and structures which contribute to the heritage significance of Wharf Road should be conserved.

Controls

- C1 The following properties are Heritage Items listed within *Inner West LEP 2022* and must be retained:
- a. Wharf Road, Birchgrove
Nos. 6, 7, 7A, 8, 11, 13, 13A, 19, 19A, 20, 21, 22, 23, 25, 31, 33, 34, 35, 36, 39 and 43;
and
 - b. Ballast Point Road, Birchgrove
Nos. 25 and 27.
- C2 Any development application for demolition must be accompanied by an assessment of the impact of the demolition on all heritage, streetscape and waterscape elements and include the impact on surrounding properties and the continuity of the street.
- C3 Any development on land covered by this Development Control Plan requires the submission of a heritage management document.
- The document shall set out:
- a. the impact of the proposed works in regard to the heritage significance of the site, streetscape, waterfront and townscape values of the neighbourhood; and
 - b. address the objectives of Part G5.1 of this Development Control Plan.
- C4 In line with Clause 5.10(6) of the *Inner West LEP 2022*, Council may require the submission of a Conservation Management Plan for Heritage Items where, due to the extent of change proposed to the item and its level of significance (i.e. state significance), it is deemed necessary.
- C5 Sandstone kerbing is an important element in the streetscape and should be retained when future development is proposed and works undertaken.
- C6 In addition to the Heritage Items mentioned above, the following buildings, structures and fences should be conserved as contributory elements of the streetscape and waterscape on Wharf Road:

Wharf Road No.	<u>Contributory</u> elements to be retained
2 & 4	Victorian semis
3	House
5A	Waterfront elements and boatsheds
9	Remains of stone house, recessed front facade, street fence
9A	Remains of stone house, street fence

SITE SPECIFIC CONTROLS

10 & 14	Matching Victorian gable fronted cottages
15	House
16 & 18	Weatherboard semis
17	Garage and street fence
26	Sandstone villa
27	Stone section of house and garden structures
29	Main timber house under gable roof
30/32	Modified Federation semis (scope to restore)
37	House
41	House

C7 The following boatsheds and summerhouses have contributory value and should be retained:

Wharf Road No.	Contributory elements to be retained
31	Boatshed
43	Summerhouse/boatshed

Structures at Nos.13, 27, 29A and 35 should be retained and future changes encouraged to enhance significance by allowing rebuilding and upgrading.

C8 The following items are noted for removal consideration or modification to a form compatible with the objectives and controls contained within this part of the Development Control Plan.

Wharf Road No.	Structures to be considered for removal at the time of any future alterations to the properties
5	Garage
13A	Boatshed
23	Additions for flat conversion
25	Chain link fence
27	Solid fence
29	Solid fence
29A	Solid wall (part)
35	Part solid fence
37	Solid fence
39	Later additions including infilling of verandahs.
41	Garage and concrete parking area
43	Solid fence

G5.2 LANDSCAPING

Objective

- O1 The topographic and landscape features of Wharf Road, including the escarpment, exposed rock, significant trees and the use of sandstone, should be retained and enhanced when development occurs.

Controls

- C1 Landscaping works to a Heritage Item are to be addressed within either a Conservation Management Plan or a Statement of Heritage Impact (SOHI) (refer to Part C1.4 – Heritage Conservation Areas and Heritage Items). In addition, refer to Part C1.14 – Tree Management for relevant controls.
- C2 Established landscapes which contribute to the character of the street are to be conserved.
- C3 Contributory trees which are to be retained are:
- a. foreshore of 7A – Moreton Bay Fig;
 - b. No. 7 and No.7A – Palms;
 - c. No.15A – Magnolia;
 - d. No.17 – Fig and Eucalypt on waterfront side;
 - e. No.25 - Eucalyptus to west;
 - f. No.35 - Waterside Fig;
 - g. No.37 – Palms; and
 - h. No. 41 and No.43 – Trees in waterside gardens.
- C4 The shape and overall form of the escarpment is to be retained both to the water and street.
- C5 The escarpment is not to be further excavated or filled against.
- C6 All natural rock edges are to be retained in their intact form.
- C7 All significant cut rock faces are to be retained.

G5.3 BUILT FORM AND URBAN DESIGN

Objective

- O1 The built form of Wharf Road, as a series of detached individual buildings, their scale, architecture style and siting in relation to the escarpment, should be retained and complemented when development occurs.

Controls

- C1 The Building Line (Refer to Figure G3 – Building Line Map) is advisory in seeking to protect both the public amenity, the view from the water of significant house fronts and provide amenity in mutual access to views, sun, light and privacy from houses on the waterfront side of Wharf Road.

The building line follows the waterside building frontages of key properties (stepping to allow inclusion of existing buildings constructed beyond the line). Development is required to be setback from the foreshore in locations to 'fit in' between and adjacent to existing buildings.

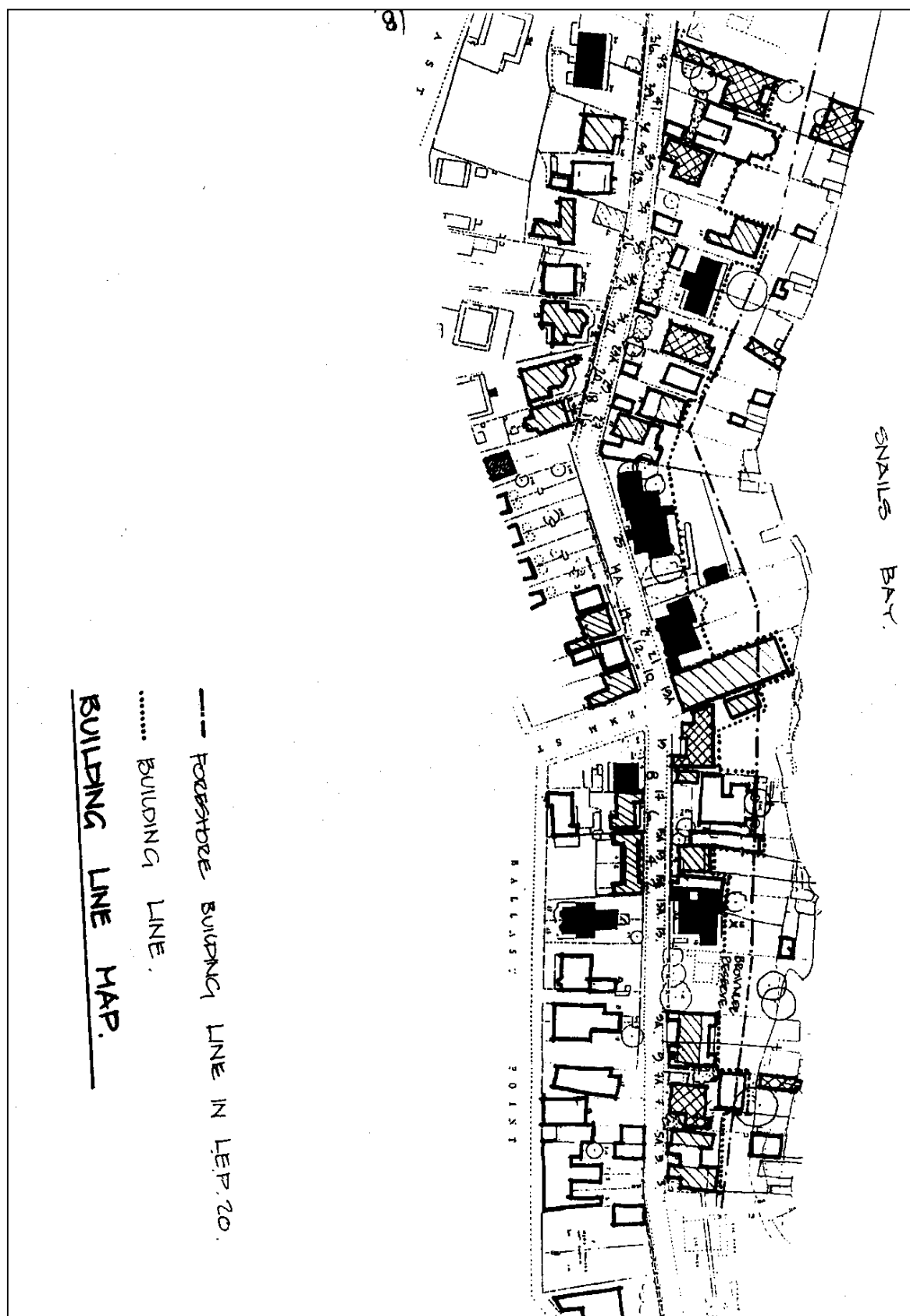


Figure G3: Building Line Map

Note: Figure G3 is an original map and references the Foreshore Building Line from LEP 20.

G5.4 ADDITIONS

Objective

- O1 The built form of Wharf Road, as a series of detached individual buildings, their scale, architectural style and siting in relation to the escarpment, should be retained and complemented when development occurs.

Control

- C1 The form of proposed additions is to relate to the existing building as follows:
- a. the use of pitched roofs is preferred over flat roofs, except in circumstances where flat roofs are to be utilised to minimise the visibility of additions from the public domain;
 - b. the use of wings to buildings of smaller scale than the original building;
 - c. to minimise the scale of additions when viewed from both the water and the street by the use of articulated forms, changes in levels and other devices seen in the existing buildings in the street;
 - d. roof dormers should only be used on buildings where determined to be appropriate (i.e. appropriate to historic character of building. Refer also to Part C3.4 – Dormer Windows of this Development Control Plan); and
 - e. existing materials, such as slate and iron, should be conserved and not replaced with modern, alternate materials. If replacement is necessary it should be undertaken using a similar material.

G5.5 BOATSHEDS/WATERSIDE STRUCTURES

Controls

- C1 Boatsheds/summerhouses are permissible on the waterfront as follows:
- a. preferably located where early structures were built and should be of similar scale and form;
 - b. should not dominate the view from the water or compromise the open landscaped edge to Snails Bay; and
 - c. development applications lodged including waterside structures will be assessed on their compatibility with the residential use of the waterfront.
- C2 New or replacement boatsheds and waterside structures are to:
- a. have a maximum plan area of 18 sqm;
 - b. be single storey (potentially incorporating attic space);
 - c. have a maximum side wall height of 3m;
 - d. have pitched roofs;
 - e. not be greater in width than one-third of the frontage and not to exceed 4m in width; and
 - f. have a compatible style, proportion and built form with the main building on the site.

Note: Reconstruction of historic boatsheds would be required to be supported by documentary evidence. Refer to Burra Charter.

G5.6 GARDEN STRUCTURES LOCATED WITHIN PRIVATE OPEN SPACE

Control

- C1 Garden structures can be provided on the waterside of properties as follows:
- a. not exceed 18sqm plan area;
 - b. be single storey;
 - c. not contain bathrooms;
 - d. be of predominantly lightweight construction;
 - e. be roofed with open sides;
 - f. not have a side height exceeding 2.7m above existing ground levels; and
 - g. not have a width greater than one third of the water frontage.

G5.7 SUBDIVISION

Control

- C1 Any further subdivision in Wharf Road must ensure:
- a. that the alignment of any new building must not encroach on the existing setbacks of existing buildings;
 - b. that the principal aspect from the street be a dwelling façade and not garaging;
 - c. that there will be a side setback on one side a minimum of 1.5m preferably related to an existing setback, to retain and enhance views to the water;
 - d. gardens on the waterfront are not further subdivided with the introduction of fences and variations in garden treatment to existing garden settings; and
 - e. that if a building is to be subdivided there must be consistency in the treatment of the subdivided sections of the property in such matters as facade treatments, colour, roof materials and overall built form. How this is to be achieved must be indicated with the subdivision application.

G5.8 FRONT FENCES/WALLS

Control

- C1 New or replacement fences should:
- a. conserve significant elements of existing fences and walls where possible;
 - b. reinstate original fences where possible, based on documentary evidence (refer to Burra Charter);

SITE SPECIFIC CONTROLS

- c. provide replacement fences of open or semi-open structures where fences are currently solid. A maximum of 50% solidity will apply;
- d. have a maximum height of 1.2m;
- e. fencing on the waterfront side should be open railed, of either metal palisade or timber construction;
- f. substantially retain existing stone retaining walls; and
- g. new materials are to be compatible with the predominant sandstone facing in texture and colour.

G5.9 VIEWS

Objectives

- O1 Existing public and private views to and from the water shall be retained and enhanced when development occurs.
- O2 The public enjoyment of Wharf Road's built form and setting should be facilitated by maintaining, conserving and improving the aspect, both from the road and from the water.

Controls

- C1 Existing side setbacks shall be preserved and reinstated to retain view corridors through to and from the water.
- C2 Open railed fencing, gates and structures shall be erected to preserve, reinstate or create views.
- C3 Garaging or car ports which obstruct views will not be permitted.
- C4 Prevailing building heights and ridgelines shall be retained if substantial view lines are enjoyed.
- C5 Trees should not be removed to enhance or achieve views and any proposed extensions that exceed the current building envelope in height or from the line of view from properties behind require a full view assessment to establish that significant loss of views and vistas does not occur.

G5.10 ACCESS, TRAFFIC MANAGEMENT AND PARKING

Objective

- O1 To minimise the impact of parking on streetscape and heritage values, view lines and landscaping.
- O2 To achieve a balance between the conservation of street parking and provision of off-street parking.

Controls

- C1 Parking and garaging provision must not detrimentally effect the presentation of houses and their landscape setting.

SITE SPECIFIC CONTROLS

- C2 On-site parking is to be limited to a single vehicular crossing per site and that a single garage only be provided.
- C3 Multiple car spaces may be achieved by tandem spaces, spaces accessed off a single driveway or garage door, or a car lift enclosed within a garage.
- C4 The minimum frontage to provide on-site parking is 5m.
- C5 Parking is not to be provided in front of the main building facade where there is a building setback of less than 7.5m from the street.
- C6 Gates are to be provided for open car parking spaces consistent with adjacent fencing.
- C7 Garage openings should have a predominantly vertical rather than horizontal emphasis.
- C8 Garages or car spaces are not to exceed 2.7m in width at the boundary line.
- C9 Garages and carports should have a compatible style, proportion and form to the main building on the site.
- C10 Where houses front Ballast Point Road and back on to Wharf Road, the following additional controls will apply
 - a. new materials are to be compatible with the predominant sandstone facing in texture and colour;
 - b. a maximum of half the frontage is to be available for vehicular access and garaging; and
 - c. vehicular crossings are to be constructed in washed concrete to reduce brightness.
- C11 The demolition of or cutting into of rock faces will not be permitted to facilitate additional off street parking.

SECTION 6 – ANKA SITE – NO. 118-124 TERRY STREET ROZELLE

Map Reference

Refer to Area 5 on the map in Figure G1 – Site Specific Areas.

G6.1 LAND TO WHICH THIS SECTION APPLIES

The site is known as 118-124 Terry Street Rozelle being Lot 3 Sec D DP 119 , Lot 2 DP 234045 and Lot 1 DP 540118 (herein referred to as the 'site').

The site has an area of 14,180sqm and is within a block bound by Victoria Road, Terry Street and Wellington Street Rozelle.

G6.2 FUTURE VARIATIONS

Council may grant consent to a proposal that does not comply with all the relevant site specific controls providing the principles of the controls are achieved. Each application will be considered on its merits. Consent may be refused despite compliance with set standards. Justification for variations to the Development Control Plan must be made in writing, accompanied by documentation as stipulated by Council and must clearly demonstrate the grounds for varying the requirements of the Development Control Plan (i.e. how the proposed development meets the relevant principles of the Development Control Plan) and achieves a good outcome.

Background

The purpose of these site specific controls is to set out the desired future character, local area character, principles and development controls for this site within Rozelle. Council will assess future development applications against these principles and controls. High quality urban design outcomes for the development site within the context of environmental, social and economic sustainability are promoted.

Council commissioned Allen Jack & Cottier to undertake an Urban Study of the Rozelle Industrial Area which includes this site. The results of this study and the community consultation on the study were reported to Council on 24th November 2009.

Subsequently, the owner of the site lodged a Planning Proposal for the site.

G6.3 OBJECTIVES

To provide objectives and controls to govern the redevelopment of the site so as to ensure that the development is compatible with the area, and meets the desired future character and needs of the community. In particular these objectives and controls aim to achieve:

- O1 design of the development:
 - a. is of high architectural and urban design merit;
 - b. is respectful of the scale of the adjoining and nearby existing industrial and residential development with articulated height and massing providing a high quality transition to the existing streetscape; and
 - c. does not exceed six storeys from street level.

SITE SPECIFIC CONTROLS

- O2 The external impacts of the development are well mannered and minimise overshadowing of Crystal Street properties.
- O3 The development minimises the use of private motor vehicles and the traffic generated by the development does not have an unacceptable impact on traffic on Terry Street, Wellington Street, Merton Street, Nelson Street and Victoria Road, Rozelle.
- O4 The non-residential uses serve the needs of people who live and work in the surrounding neighbourhood and do not adversely impact on the high street.
- O5 The development provides and facilitates pedestrian and cycle access through the site to Merton Street and Margaret Street.
- O6 The development incorporates leading environmental sustainable design principles.
- O7 The development includes the necessary design and acoustic measures to ensure the existing industrial uses do not adversely impact on the amenity of future residents.
- O8 The retail and commercial uses do not adversely impact on the high street but rather complement and meet the needs of the community.
- O9 The industrial uses of Crystal Street are enhanced by new industrial uses.
- O10 The new development is well shielded from the nearby non-residential uses to ensure the viability of those uses into the future.

Desired Future Character Statement

The site currently lies within the Rozelle Commercial Distinctive Neighbourhood (section C2.2.5.5 of this Plan) and next to the Iron Cove Distinctive Neighbourhood (section C2.2.5.4 of this Plan).

The rezoning of the site to Residential will result in a new character that will need to be compatible with these adjoining neighbourhoods. The new character of the site shall:

- C1 respond to the topography of the site, the character of existing streets, adjacent residential and industrial uses; maintain the character of the area by ensuring new development is complementary in terms of its architectural style, built form and materials;
- C2 improve the streetscape amenity by improved design and layout of buildings as well as increased attention to site usage, signage and ancillary uses;
- C3 promote a mix and variety of uses and building styles that enhance and contribute to the character and identity of the neighbourhood, whilst protecting local townscape;
- C4 improve pedestrian and cycle accessibility, safety and facilities to take full advantage of low cost/public transport services in the area;
- C5 protect and enhance the residential amenity of dwellings in and adjoining the neighbourhood;
- C6 encourage appropriate lighting and signage consistent with the character of the area; and
- C7 encourage sympathetic colour schemes, corporate identity and signage for commercial buildings that define the character of the area, yet retain the individual identity of each property.

These Desired Future Character requirements will create a new Local Area Character for the site.

G6.4 PUBLIC DOMAIN

Objectives

Integration with existing road network

- O1 To ensure that the public domain components of the development contribute to an activated, human scale street environment.
- O2 To ensure that intersection design, streetscape elements and landscaping support the pedestrian, cyclist and vehicular movement system in and adjacent to the development.
- O3 To provide for the construction and integration of a new public road, incorporating a four way intersection with Terry Street and Margaret Street and which establishes the potential for a physical link to Merton Street.
- O4 To ensure that where modifications to road layout and alignment are implemented that all areas of land within the road reserve are dedicated to Council.
- O5 To ensure that Terry Street, the new road and intersection can accommodate a safe environment for all road users, including pedestrian, bicycle and vehicular traffic on both sides of the road.
- O6 To make provision for a 'shared' or 'slow' zone to be designed and constructed in the new street.

Controls

New road

- C1 The design, layout and alignment of the new road is generally to be in accordance with Figure G5: Intersection Terry Street & Margaret Street and Figure G6: Public Domain, subject to detailed design development in consultation with Council.
- C2 The final design of the new road is to be considered at the development application stage.
- C3 The design of the new road must comply with the requirements of Austroads, all relevant Australian Standards and Council's Roadworks Specifications.
- C4 The new road is to incorporate the following elements as a minimum requirement:
 - a. total width of road reserve = 16.0m; and
 - b. generally consisting of:
 - 900mm out from property boundary, both sides, to be set aside for services, street lights, etc;
 - 1800mm footpath, both sides;
 - 2300mm from face of kerb for parallel parking, both sides;
 - 3000mm lane width x 2;

except where varied in accordance with Council approved plans, sections and specifications for the provision of a 'shared' or 'slow' zone.
- C5 The new road is to be constructed in accordance with Council requirements:

SITE SPECIFIC CONTROLS

- a. all land within the new road reserve is to be dedicated to Council in accordance with the requirements of any applicable Development Consent granted;
- b. approval must be granted by Council's Manager – Assets for any turning area to be provided at the Merton Street end of the new street;
- c. the design of the setback to the new street frontage must be in accordance with Council approved sections and plans.

Intersection of Terry Street, Margaret Street and the new road

- d. the design and construction of the new intersection and road is generally to be in accordance with Figure G5: Intersection Terry Street & Margaret Street and Figure G6: Public Domain, subject to detailed design development in consultation with Council;
- e. Council approval of design details, including dimensions, alignment, landscaping, materials, threshold treatments and parking will be required prior to construction of the intersection;
- f. all land within the modified road reserve is to be dedicated to Council;

Terry Street

- g. land required to accommodate minor modifications to Terry Street near the intersection of Wulumay Close, as identified in Figure 7: Terry Street Road Alignment, is to be dedicated to Council; and
- h. the design of the 3m setback to Terry Street building frontage must be in accordance with Council approved sections and plans.

G6.5 THROUGH SITE LINKS

Objectives

- O1 To facilitate pedestrian access through the site to link the new road and Crystal Street.

Controls

- C1 A pedestrian path providing unobstructed public access is to be provided between the new street and Crystal Street as shown on Figure G8: Neighbourhood Centre Integration, Active Frontages and Vehicle Access.

G6.6 ACTIVE FRONTAGES PROVISIONS

Objectives

- O1 To ensure that uses and frontages of buildings adjacent to the intersection of the new street and Terry Street contribute to the activation of the public domain and facilitate and support a vibrant neighbourhood centre, which serves the local community.
- O2 To ensure that the non-residential character of Crystal Street is maintained.
- O3 To ensure that design of residential frontages maximises surveillance of the public domain and reinforces the activation of the street environment.
- O4 To ensure that façade articulation and elements within the building setback areas facilitate an active street environment.

Controls

Neighbourhood Centre

- C1 The ground floor of buildings in locations as indicated in Figure G8: Neighbourhood Centre Integration, Active Frontages and Vehicle Access are to accommodate active uses including shops, cafes and restaurants and appropriate commercial uses and access to buildings.
- C2 Informal/outdoor eating areas associated with food and drink premises may be provided within the public domain and will be subject to the controls contained within *Development Control Plan No. 48 Approvals Policy Managing Activities on Footpaths and Verges*.

Live/Work development

- C3 Active light industrial/commercial floor space is to be located fronting Crystal Street at ground floor level (refer to Figure G8: Neighbourhood Centre Integration, Active Frontages and Vehicle Access).
- C4 Live/work units are to be designed to provide active light industrial/commercial floor space at ground level with the residential component located above and must be accessible via an internal stairway.
- C5 Any dwelling in the live/work development must be on the same title as the corresponding ground floor active employment use and must not be an individual lot in a strata plan or community title scheme.

Residential – General

- C6 Direct pedestrian access from the street to ground floor apartments should be provided where possible.
- C7 The design of the building setback area to the new street building frontage must be in accordance with Council approved sections and plans.
- C8 Building frontages are, wherever possible, to incorporate balconies, direct street access, windows, terraces and other built form elements to maximise opportunities for visual surveillance of the street environment and physical access from the buildings to the street environment directly adjacent.

Residential – Terry Street south of the new road

- C9 Direct pedestrian access from the street to ground floor apartments should be provided where possible.
- C10 Landscaped terraces should be incorporated into the building setback area along Terry Street, where appropriate, to provide a link between the building frontage and the street where there is a change in level.
- C11 Low walls which establish informal seating along the street frontage are to be incorporated in various locations.

G6.7 VIEWS

Objectives

- O1 To protect views from the public domain, across and over the site consistent with the planning controls in this Development Control Plan.

Controls

- C1 A view analysis is to accompany any development application and is to identify any private views currently obtained from neighbouring residential properties.
- C2 In the event that such views are compromised by the proposal, the development application is to be accompanied by an analysis and justification having regard to *Tenacity Consulting v Warringah Council* [\[2004\] NSWLEC 140](#).

G6.8 AWNINGS

Objectives

- O1 To ensure that awnings or weather protection structures serve to enhance public use and amenity of non-residential ground floor buildings and the streetscape.

Controls

- C1 Buildings with non-residential ground floor uses along Terry Street and the new street are to incorporate an awning or weather protection structure at first floor level.
- C2 The setback from the kerb of any awning or weather protection structure is to be a minimum of 300mm and may be up to 600mm.
- C3 Awnings and weather protection structures are to be complementary to the building and streetscape in terms of materials, detailing and form.
- C4 Awnings and weather protection structures will not be permitted at the entry to the buildings where the ground floor use is residential if they encroach upon the public domain.

G6.9 STREET TREES

Objectives

- O1 To ensure that street tree planting is consistent with Council's Street Tree policy.

Controls

- C1 Street tree planting along Terry Street is to be *Lophostemon confertus* (Brush Box) – 100 litre container stock.
- C2 All planting in the public domain, including the new street is to be in accordance with Council approved landscape plans and specifications.

G6.10 BUILDING HEIGHT

Objectives

- O1 To ensure that height of the buildings in the development responds to the scale, character and form of existing streetscapes.
- O2 To ensure that new buildings are modulated in height so that there is no additional overshadowing on adjacent properties beyond that shown in Figure G10/G11: Indicative Shadows as at 21st June.

Controls

- C1 Except as defined for the purposes of calculating Floor Space Ratio ground level is defined by *Inner West LEP 2022*.
- C2 The maximum height of buildings and number of storeys is to be determined from ground level and is to be in accordance with clause 6.15 of *Inner West LEP 2022*.
- C3 The number of storeys permissible is not to exceed six storeys in the centre of the site and three (3) storeys around the perimeter of the site, in accordance with Figure G9: Heights and must not result in additional overshadowing of adjacent properties, Crystal Street properties and Wellington Street properties beyond that shown in *Figure G10/G11: Indicative Shadows as at 21st June*.
- C4 Structures including roof elements, lift overruns and landscape elements may be provided on podium areas or rooftops above the specified number of storeys, subject to consideration of potential impacts on the streetscape, the amenity of the adjoining properties and the overall character of the area.

G6.11 BUILDING BULK

Objectives

- O1 To provide buildings which have a bulk and scale which reflect their context and include setbacks and modulation to reduce visual bulk.

Controls

- C1 A 1.5:1 Floor Space Ratio limit applies to the subject land in accordance with *Inner West LEP 2022*.
- C2 Floor space ratio is to be calculated in accordance with the provisions and definitions as contained in *Inner West LEP 2022*.
- C3 Modulation of building bulk is to be in accordance with other provisions, including height, setback and active frontage controls as contained in this Development Control Plan.

G6.12 SETBACKS AND ARTICULATION

Objectives

- O1 To ensure that buildings are modulated and articulated to respond to streetscape, visual bulk and amenity issues.
- O2 To ensure that the fourth storey of Building C fronting Terry Street south of the new road is to be setback so that it is not visible from the east side of Terry Street.
- O3 To minimise impacts on the solar access of the rear of properties in Wellington Street.

Controls

- C1 Setbacks are to be provided in accordance with the details in Figure G12-G19: Setbacks.
- C2 The four storey component of Building C is to be setback 8m from the property boundary along the Terry Street frontage, south of the new road.

SITE SPECIFIC CONTROLS

- C3 In instances where there is a conflict between setbacks and the approved shadow line as indicated in Figure G12-G19: Setbacks the approved shadow line will apply.
- C4 Additional articulation of building forms and elements may be permitted to encroach within the nominated building setback subject to Council consideration of detailed elevations and sections.
- C5 The fourth floor of Building B is to be reduced in size at the north-east corner and setback an additional 3.15m from the Wellington Street properties rear boundary increasing the Figure G12-G19: Setback at this location to 9.15m and reducing the upper two floors of Building B setback at the same location from 21.7m to 16m in accordance with Figure G23: Building B Eastern Gable setbacks and modulation.

G6.13 BUILDING SEPARATION

Objectives

- O1 To ensure that buildings have adequate separation to minimise visual bulk and to ensure adequate amenity within the site.

Controls

- C1 Separation between buildings should be provided as required by the *Residential Flat Design Code* (RFDC) which forms part of *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)*.

G6.14 BUILDING MATERIALS AND FINISHES

Objectives

- O1 To ensure that buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Building and landscape materials are to be fit for purpose and reflect the Desired Future Character Statement, be appropriate for climatic conditions and be of high specification to ensure long term quality and sustainability of the development.
- C2 Materials to be used may include:
 - a. heavy materials for the base structure: concrete, masonry, render;
 - b. lightweight materials for the top of the building to allow flexibility in roof form: steel, aluminium and other metallic materials; and
 - c. screening elements: to provide enhanced privacy to the occupants of the development as well as to adjoining residential properties.

G6.15 DESIGN OF BUILDING ELEMENTS

Objectives

- O1 To ensure that fronts, backs and tops of buildings have a high quality appearance and have regard to the character of the surrounding area.

Controls

- C1 Buildings are to be designed in accordance with the Desired Future Character Statement.
- C2 The design of building elements should provide an appropriate interface between the older, more traditional areas on the slopes leading up to the Darling Street shopping strip and the contemporary residential developments leading down to the shores of Iron Cove to the north and west.
- C3 The design of the buildings should be of contemporary design, be fit for purpose for those visiting, working, or residing within the development and nearby.
- C4 Buildings and landscape elements, including balconies, entries, rooflines and screening are to contribute to the character of the streetscape, enhance opportunities for visual supervision of the public domain, reduce overlooking, enhance residential amenity and make a positive contribution to place identity.

G6.16 DISABILITY ACCESS

Objectives

- O1 To ensure that access to the development and its surrounds is maximised for people of all abilities and needs.

Controls

- C1 The provisions of Part C1.10 Equity of Access and Mobility within this Development Control Plan apply.

G6.17 SIGNAGE

Objectives

- O1 To allow the neighbourhood centre and light industrial space to provide appropriate signage whilst ensuring that such signage does not result in visual clutter and is compatible with its context.

Controls

- C1 All signage is to be located on those parts of the building used for non-residential purposes.
- C2 Signage must be for non-residential purposes and be in accordance with controls contained in Part C1.15 Signs and Outdoor Advertising of this Plan.

G6.18 SOLAR ACCESS

Objectives

- O1 To optimise solar access to habitable rooms and private open space of new housing to improve amenity and energy efficiency.

Controls

- C1 All development is to be constructed in accordance with *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)*.

G6.19 CROSS VENTILATION

Objectives

- O1 To ensure that dwellings have good access to fresh air and that energy efficiency is maximised.

Controls

- C1 All development is to comply with the provisions contained in C3.7 Environmental Performance of this Plan.
- C2 60% of residential units should be naturally cross ventilated in accordance with the *Residential Flat Design Code (RFDC)* which forms part of *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Buildings (SEPP 65)*.

G6.20 OPEN SPACE

Objectives

- O1 To ensure that areas of open space are allocated for the communal use of residents of the site for relaxation and recreation.

Controls

- C1 Open space is to be provided in accordance with Figure G20: Open Space.
- C2 A minimum of 2000sqm of communal open space should be provided in accordance with Figure G20: Open space or as approved by Council.
- C3 A minimum of 2,690sqm of open space is to be provided between the northern building (Building A) which fronts Terry Street and the building which fronts the northern side of the new road (Building B), or as approved by Council.
- C4 Roof tops may be used as communal open space where there is minimal potential for visual and acoustic privacy impacts.
- C5 The area on the southern side of the new street that is not intended to accommodate built form should be utilised for communal open space that is publicly accessible, or for the purpose of a shared or slow zone.

G6.21 VISUAL PRIVACY

Objectives

- O1 To protect the visual privacy of adjoining dwellings by minimising direct overlooking of principle living areas and private open space.

Controls

- C1 All development is to comply with the provisions contained in C3.11 Visual Privacy of this Plan.
- C2 All buildings are to be designed to have no living rooms or balconies where the primary orientation is to the boundary with Wellington Street dwellings.

SITE SPECIFIC CONTROLS

- C3 Any habitable rooms with windows facing the Wellington Street boundary which are capable of overlooking should have either 'highlight' windows or have fixed louvres which restrict overlooking of the adjoining properties (see Figure G22: View Protection Wellington Street).
- C4 A 6m building setback plus associated deep soil planting is to be provided to the eastern boundary of Building B (as identified in Figure G22: View Protection Wellington Street) to allow for the provision of significant tree planting.

G6.22 DEEP SOIL LANDSCAPE AREA

Objectives

- O1 To ensure that a suitable area of the site is used for open space including deep soil landscaping which will add to the amenity of the site and the public domain.

Controls

- C1 A minimum of 2,000sqm of deep soil landscaping (i.e. with no structure below) is to be provided in accordance with Figure G21: Deep Soil.
- C2 Private open space for each apartment is to be provided in accordance with Part C3.8 Private Open Space of this Plan.

G6.23 PARKING RATES

Objectives

- O1 To provide an appropriate balance between encouraging use of public transport and increasing demand for on-street parking in the area.

Controls

- C1 Car parking is to be provided at the following rates to a maximum of 250 spaces:
- a. Non-residential uses;
 - 1 space/65sqm GFA;
 - b. Residential uses;
 - Studio/1 bedroom units - 1 space;
 - 2 bedroom units – 1 space;
 - 3+ bedroom units – 1.5 spaces;
 - Visitor spaces – 1 space/10 units.
- C2 All bicycle parking is to comply with the provisions contained in C1.11 Parking of this Plan.

G6.24 VEHICULAR ACCESS

Objectives

- O1 To ensure that building vehicular access and egress points are best located to reduce potential for conflict, particularly in the areas where active non-residential frontages are proposed.

SITE SPECIFIC CONTROLS

- O2 To ensure that non-residential areas have adequate loading/unloading facilities.

Controls

- C1 Vehicular access is to be generally in accordance with the locations shown on Figure G8: Neighbourhood Centre, Integration, Active frontages and Vehicle Access.
- C2 All building vehicular access and egress points are subject to final Council approval.

G6.25 CAR PARK ENTRY DESIGN

Objectives

- O1 To minimise the impacts of vehicular entry on the streetscape where possible.

Controls

- C1 Vehicular entries are to be designed to minimise the visibility of garage doors on the street. This should be achieved through providing parking below ground level and setting doors back from the street boundary and building edge.
- C2 Where service vehicles require access at or above ground level, other methods are to be employed to reduce the visual impact of parking access.

G6.26 SUSTAINABILITY RATING

Objectives

- O1 To ensure that a high level of sustainability is achieved by requiring a higher standard to be achieved than would typically apply to such development.

Controls

- C1 The environmental performance and any development of the site must consider the following matters:
- a. 'energy': demand reduction, use efficiency, and generation;
 - b. 'water': reduction in potable water use, water reuse and use of other water sources;
 - c. 'management': sustainable development principles throughout the life of the project;
 - d. 'indoor air quality': enhanced building performance and wellbeing of occupants;
 - e. 'transport': reduction in demand for private car usage and encouraging alternative forms of transportation;
 - f. 'building materials': reduction in resource consumption through material selection, reuse and management practices;
 - g. 'land use and ecology': reduction in the impact on the ecosystem;
 - h. 'emissions': mitigating point source pollution from buildings & building services to the atmosphere, watercourse, and local ecosystems; and
 - i. 'innovation': pursuing innovation that fosters the industry's transition to a more sustainable building as specified by the Green Star Rating System.

G6.27 ACTIVE TRANSPORT

Objectives

- O1 To encourage use of active transport including public transport, cycling and walking.

Controls

- C1 A Travel Access Guide will be required to be available to residents and non-residential tenants of the development and approved by Council prior to occupation.

G6.28 DRAINAGE AND WATER MANAGEMENT

Objectives

- O1 To integrate water sensitive urban design into the development to reduce peak stormwater flows downstream, minimise transport of pollutants into waterways and maximise water recycling.

Controls

- C1 Stormwater Drainage System: must be designed to Council's satisfaction and when installed must cater for the full length of the new road. It must be also be connected to the Council drainage system in Terry Street and include any upgrade to that system that is necessary to ensure no adverse impact that might be caused by that connection.
- C2 Future development: the design of the drainage system will be required to accommodate extension of the drainage system from Wellington Street and uphill lands when the road is extended.
- C3 Any development of the site must also consider the following matters:
- a. 'water': reduction in potable water use, water reuse and use of other water sources;
 - b. 'land use and ecology': reduction in the impact on the ecosystem;
 - c. 'emissions': mitigating point source pollution from buildings & building services to the atmosphere, watercourse, and local ecosystems; and
 - d. 'innovation': pursuing innovation that fosters the industry's transition to a more sustainable building as specified by the Green Star Rating System.

G6.29 WASTE AND RECYCLABLE MATERIALS TEMPORARY STORAGE AND DISPOSAL FACILITIES

Objectives

- O1 To ensure that adequate on-site provision is made for the temporary storage and disposal of waste and recyclable materials.
- O2 To ensure that opportunities to maximise source separation and recovery of recyclables are integrated into the development.

SITE SPECIFIC CONTROLS

- O3 To minimise risk to health and safety associated with handling and disposal of waste and recycled material and the potential for adverse environmental impacts associated with waste management.

Controls

- C1 Facilities required for the management, temporary storage, loading and unloading of waste and recyclable materials are to be provided wholly within the development.
- C2 Waste management and storage areas are to be located, designed and constructed to ensure integration into the streetscape on Terry Street and the new street.
- C3 A completed Site Waste Minimisation and Management Plan (SWMMP) must accompany any development application.



Figure G4: Site Location Map

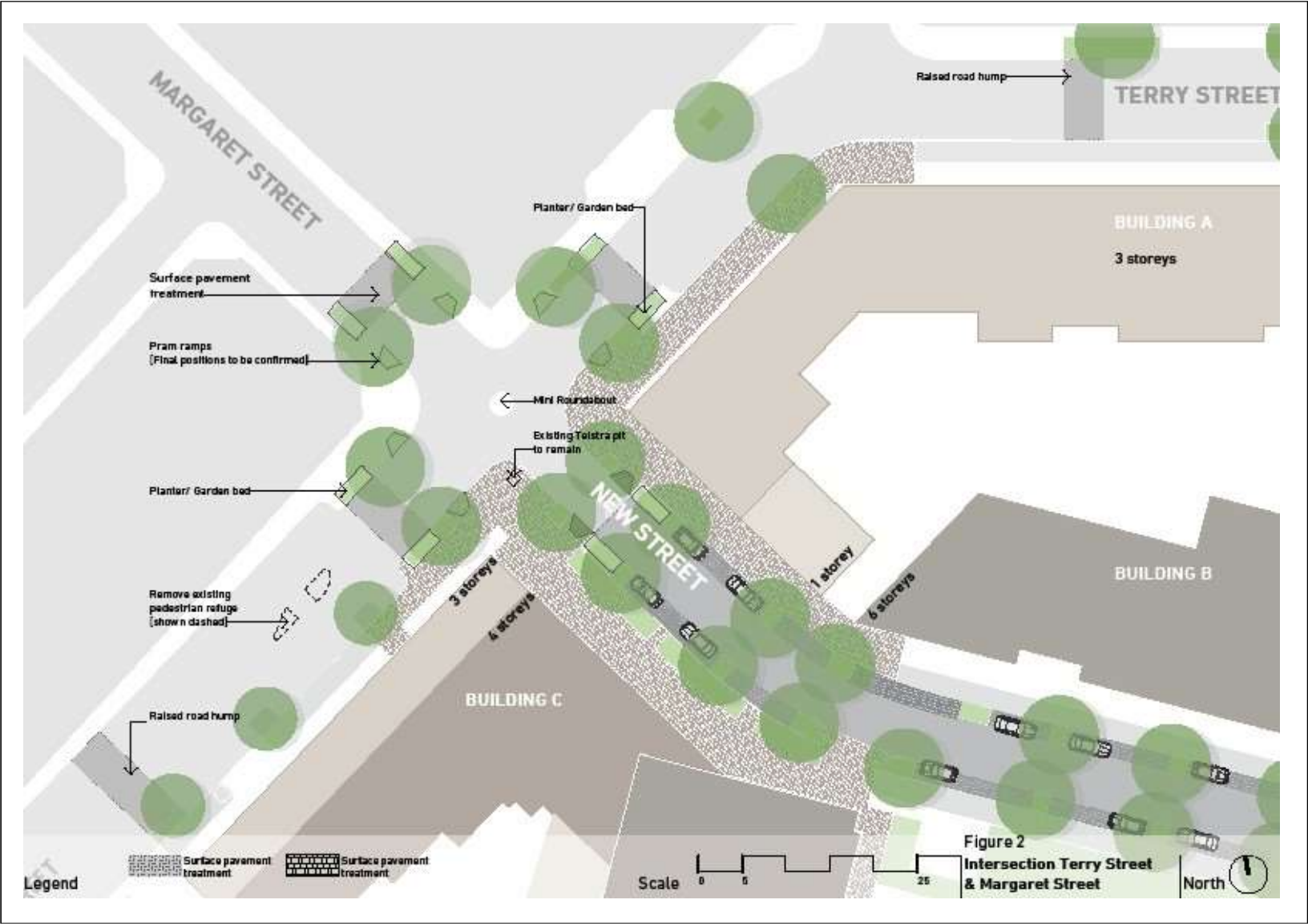


Figure G5: Intersection Terry Street and Margaret Street



Figure G6: Public Domain

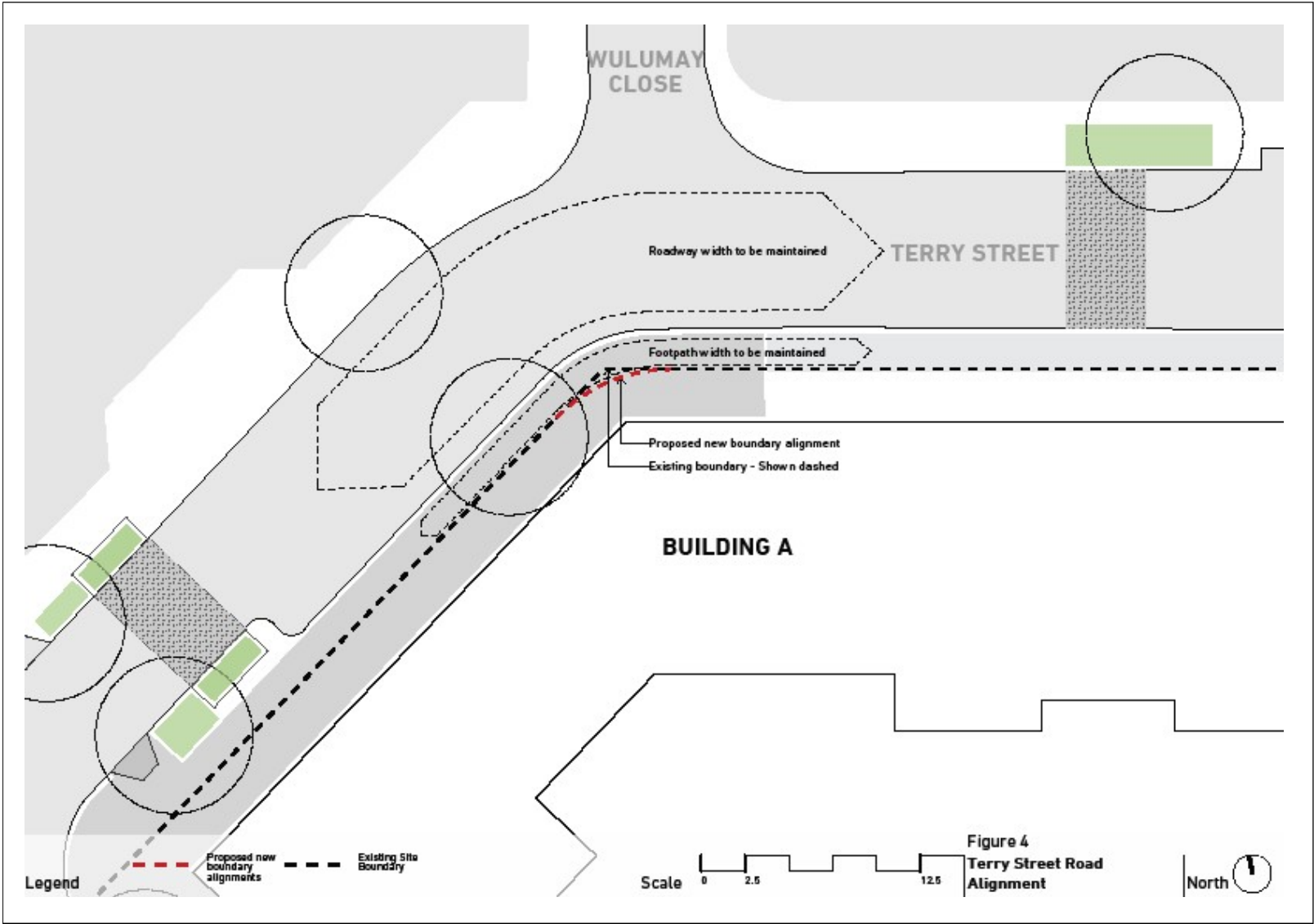


Figure G7: Terry Street Road Alignment

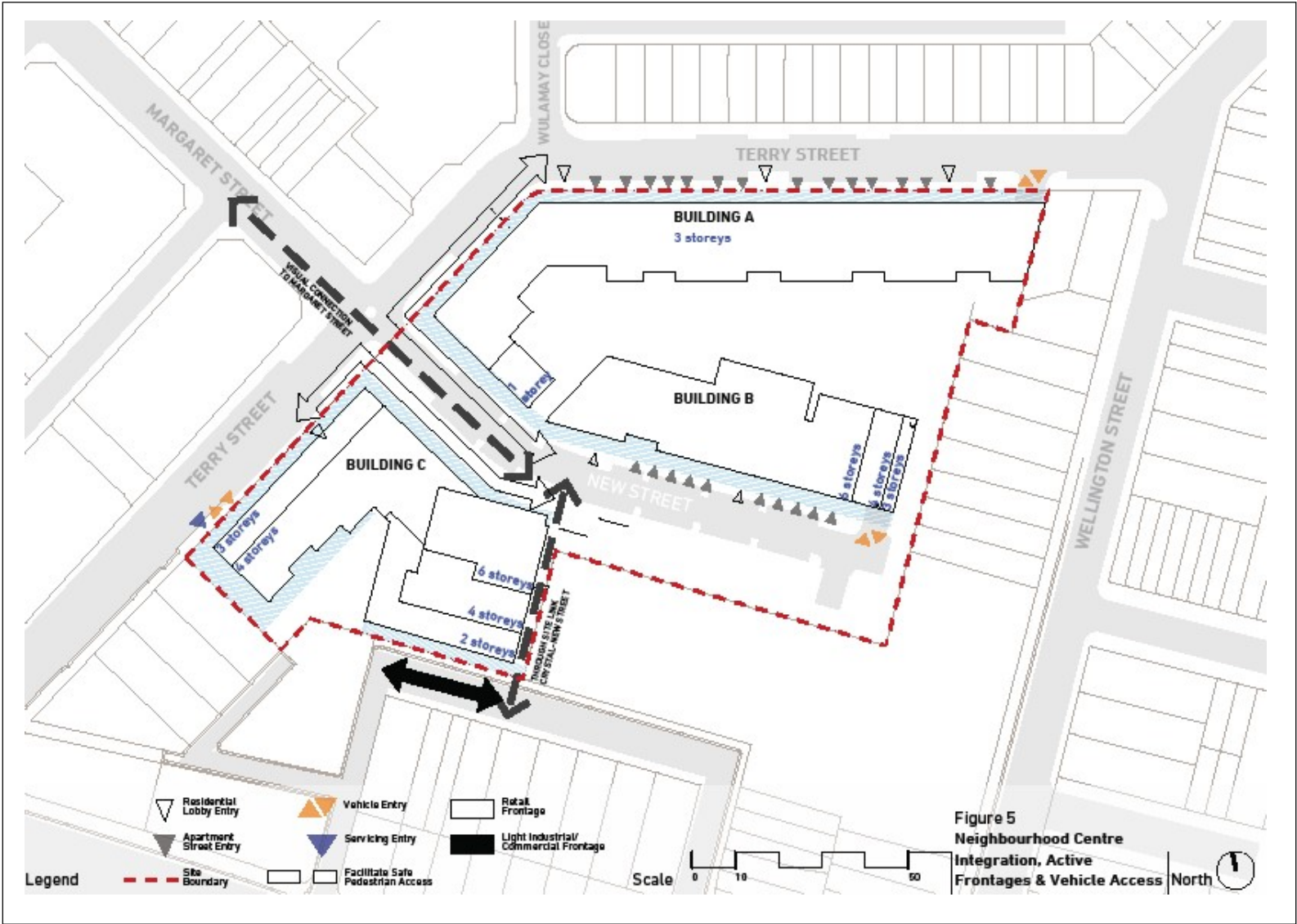


Figure G8: Neighbourhood Centre Integration Active Frontages and Vehicle Access



Figure G9: Height